

Rajesh Yadav v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 22 May 2024 · 2024:AHC:92597-DB · WRIT - C No. - 12405 of 2024 · **Petition disposed of; cause of action does not survive.**

HEADNOTE

Writ to quash an electricity assessment notice disposed of after the licensee cancelled that notice and issued a fresh assessment notice. Cause of action held not to survive. Petitioner left to reply to the later notice; assessing officer to proceed under the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Rajesh Yadav petitioned the Allahabad High Court to quash a notice dated 29 November 2022 issued by respondent no. 3 of the Electricity Department and to restrain coercive action in pursuance of that notice. Counsel for the Electricity Department stated that the 29 November 2022 notice had been cancelled and a fresh notice for making assessment issued on 29 February 2024, and that any reply the petitioner filed to the later notice would be considered while making the final assessment.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

assessment-notice-procedure

HOLDING

Where the electricity department cancelled the impugned assessment notice and issued a fresh notice for making assessment, the writ cause of action does not survive. The consumer may file a reply to the fresh notice; the assessing officer must then proceed strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005. ¶ 3-5

FLAG Court invoked the Supply Code generally; no clause number given.

PRINCIPLE TAGS

no-coercive-action-until-final-assessment Writ to quash an electricity assessment notice disposed of after the licensee cancelled that notice and issued a fresh assessment notice. Cause of action held not to survive. Petitioner left to reply to the later notice; assessing officer to proceed under the U.P. Electricity Supply Code, 2005. ¶ 3-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE CANCELLED 29.11.2022 NOTICE AND OF THE FRESH ASSESSMENT NOTICE DATED 29.2.2024

Original notice cancelled by the licensee; neither notice examined on merits. ¶ 3-4